

SENATE FLOOR VERSION

February 9, 2026

AS AMENDED

SENATE BILL NO. 2108

By: Deevers and Bullard of the
Senate

and

West (Rick) of the House

An Act relating to feral swine; amending 2 O.S. 2021, Section 6-604, which relates to the removal of feral swine; requiring permission from landowner or lessee to remove or take feral swine on certain property; prohibiting the transportation, importation, and release of live feral swine; providing certain exemptions; providing penalties; amending 29 O.S. 2021, Sections 4-107.2, as amended by Section 1, Chapter 77, O.S.L. 2018, 4-135, as last amended by Section 1, Chapter 198, O.S.L. 2023, and Section 3, Chapter 171, O.S.L. 2022 (29 O.S. Supp. 2025, Sections 4-135 and 4-135.2), which relate to control of nuisance wildlife; removing ability to maintain certain firearm for nuisance control; permitting the nuisance control without permit under certain circumstances; prohibiting certain times to shoot feral swine; authorizing revocation of license upon conviction; making language gender neutral; updating statutory language and references; repealing 2 O.S. 2021, Section 6-605, which relates to special permit for private property owner to kill feral swine; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 2 O.S. 2021, Section 6-604, is amended to read as follows:

1 Section 6-604. A. Except as otherwise specified in the Feral
2 Swine Control Act, any person with permission of the owner may
3 remove feral swine from private or public property during daylight
4 hours.

5 B. Any person who intends to kill or attempt to kill feral
6 swine at night shall obtain ~~a permit issued by the Department of~~
7 ~~Wildlife Conservation pursuant to Section 4-135 of Title 29 of the~~
8 ~~Oklahoma Statutes and promulgated rules~~ written permission from the
9 landowner or agricultural lessee.

10 SECTION 2. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 6-615 of Title 2, unless there
12 is created a duplication in numbering, reads as follows:

13 A. As used in this section, the terms "feral swine," "remove,"
14 and "Judas pig tagging system" shall have the same meanings as
15 provided in Section 6-603 of Title 2 of the Oklahoma Statutes.

16 B. It shall be unlawful for any person to:

17 1. Transport or relocate any live feral swine within this
18 state;

19 2. Import any live feral swine into this state; or

20 3. Intentionally release any feral swine to live in a wild or
21 feral state upon any public or private land.

22 C. The prohibitions in subsection B of this section shall not
23 apply to:
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1 1. Activities approved in writing by the Oklahoma Department of
2 Agriculture, Food, and Forestry for scientific research or
3 veterinary purposes, provided such activities are conducted under
4 direct oversight by the Department and include measures to prevent
5 escape or spread;

6 2. The use of a Judas pig tagging system, as defined in Section
7 6-603 of Title 2 of the Oklahoma Statutes, where a radio-collared
8 feral swine is released onto the same private land from which it was
9 captured, within twenty-four (24) hours of capture, solely for the
10 purpose of population control; **or**

11 **3. A feral hog hunting facility operated by the Oklahoma**
12 **Department of Agriculture, Food, and Forestry.**

13 D. Any person violating the provisions of this section shall be
14 guilty of a misdemeanor for the first offense and shall be punished
15 by a fine not less than Five Hundred Dollars (\$500.00) nor more than
16 One Thousand Dollars (\$1,000.00), or by imprisonment in the county
17 jail for not more than six (6) months, or by both such fine and
18 imprisonment. For a second or subsequent offense, the violation
19 shall be a felony punishable by a fine not less than Two Thousand
20 Dollars (\$2,000.00) nor more than Five Thousand Dollars (\$5,000.00),
21 or by imprisonment in the custody of the Department of Corrections
22 for not more than one (1) year, or by both such fine and
23 imprisonment. In addition, upon conviction, the court may order the
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1 revocation of any hunting, fishing, or agricultural license held by
2 the violator for a period of one (1) to two (2) years.

3 E. Violations involving the intentional release of ten or more
4 feral swine, or releases that result in documented spread to new
5 areas, shall be classified as a felony regardless of prior offenses,
6 with penalties as provided in subsection D of this section for
7 subsequent offenses.

8 F. Nothing in this section shall be construed to prohibit the
9 removal of feral swine as authorized under Section 6-604 of Title 2
10 of the Oklahoma Statutes or other provisions of the Feral Swine
11 Control Act.

12 SECTION 3. AMENDATORY 29 O.S. 2021, Section 4-107.2, as
13 amended by Section 1, Chapter 77, O.S.L. 2018, is amended to read as
14 follows:

15 Section 4-107.2. A. The Oklahoma Department of Agriculture,
16 Food, and Forestry is authorized to issue a permit to a person to
17 engage in the management of depredating animals by use of aircraft.
18 The permit may be issued without limitation by statewide season
19 regulations or bag limits.

20 B. The permit holder may contract with and authorize other
21 persons to engage in the management of depredating animals by use of
22 an aircraft, provided that the permit holder accompanies the
23 authorized person while engaging in the activity and, if engaging in
24 the activity on private property, the authorized person has consent

1 of the landowner. Any person contracting with or authorized by a
2 permit holder pursuant to this subsection shall not be required to
3 have a permit to engage in the management of depredating animals by
4 use of aircraft. If contracting or authorizing other persons to
5 engage in the management of depredating animals by use of an
6 aircraft, the permit holder shall inform the person of the
7 importance of safely keeping his or her aim and fire beneath the
8 horizon. The permit holder shall have the authorized person sign a
9 disclosure stating that the person is aware of the dangers of aiming
10 and shooting over the horizon. The permit holder shall retain a
11 copy of the disclosure for a reasonable period of time. Personnel
12 of the Department of Defense and law enforcement shall not be
13 required to sign a disclosure.

14 C. A pilot of an aircraft used for the management of
15 depredating animals shall maintain a daily flight log and report.
16 The daily flight log shall be current and available for inspection
17 by employees of the Oklahoma Department of Agriculture, Food, and
18 Forestry at reasonable times. The permit shall be carried in the
19 aircraft when performing management by the use of aircraft. Each
20 permit holder, authorized person pursuant to subsection B of this
21 section, and pilot shall comply with all Federal Aviation
22 Regulations for the specific type of aircraft. The Oklahoma
23 Department of Agriculture, Food, and Forestry shall not require the
24 pilot to hold a specific type of pilot's license. The Oklahoma

1 Department of Agriculture, Food, and Forestry shall also not require
2 the permit holder or pilot to carry liability insurance.

3 Applications for a permit shall be submitted to the Oklahoma
4 Department of Agriculture, Food, and Forestry and shall contain all
5 information as required by the Oklahoma Department of Agriculture,
6 Food, and Forestry. The Oklahoma Department of Agriculture, Food,
7 and Forestry may issue a permit if it finds that it will aid in the
8 management of depredating animals. The Oklahoma Department of
9 Agriculture, Food, and Forestry may deny the permit if it finds that
10 it will have a deleterious effect on indigenous species. The
11 Oklahoma Department of Agriculture, Food, and Forestry shall not
12 require the names of the persons authorized by or contracting with
13 the permit holder pursuant to subsection B of this section. The
14 permit shall include, but is not limited to, the following
15 information:

- 16 1. The name and address of the permit holder;
- 17 2. A description of the animals to be taken;
- 18 3. A description of the area from which the animals are
19 authorized to be taken; and
- 20 4. The issue and expiration date of the permit.

21 D. A permit to manage depredating animals issued pursuant to
22 this section shall be valid for a period of one (1) year from the
23 date of issuance. Permits may be renewed by filing an application
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1 for renewal with the Oklahoma Department of Agriculture, Food, and
2 Forestry.

3 E. The annual fee for a permit to manage depredating animals
4 issued pursuant to this section shall be Two Hundred Dollars
5 (\$200.00).

6 F. Not less than twenty-four (24) hours prior to managing
7 depredating animals by use of an aircraft, a permit holder shall
8 notify the Oklahoma Department of Agriculture, Food, and Forestry of
9 the date, time, and area on which management will occur.
10 Notification may be made by telephone, fax, or electronic means, as
11 determined by the Oklahoma Department of Agriculture, Food, and
12 Forestry.

13 G. The holder of a permit to manage depredating animals issued
14 pursuant to this section shall file with the Oklahoma Department of
15 Agriculture, Food, and Forestry within thirty (30) days following
16 the end of each calendar quarter or on termination of the permit,
17 whichever occurs first, a report on a form prescribed by the
18 Oklahoma Department of Agriculture, Food, and Forestry showing:

19 1. The name, address, and permit number of the permit holder;

20 2. The name and address of the pilot participating in the
21 flights;

22 3. The number and description of the depredating animals
23 managed under the permit;

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1 4. The types of depredating animals authorized to be managed
2 under the permit;

3 5. Dates and times of authorized flights; and

4 6. Any other information required by the Oklahoma Department of
5 Agriculture, Food, and Forestry.

6 H. It shall be unlawful for a person issued a permit to manage
7 depredating animals pursuant to this section or a person authorized
8 by or contracting with the permit holder pursuant to subsection B of
9 this section to:

10 1. Hunt, shoot, shoot at, kill, or attempt to kill from an
11 aircraft any wildlife, domesticated animal, or livestock other than
12 the depredating animals authorized by the permit;

13 2. Intentionally disturb, haze, or buzz any wildlife,
14 domesticated animal, or livestock by the use of an aircraft other
15 than the depredating animals authorized by the permit; or

16 3. Take or attempt to take any depredating animal for any
17 purpose other than is necessary for the protection of land, water,
18 wildlife, livestock, domesticated animals, human life, or crops.

19 I. During designated deer hunting seasons from the dates of
20 October 1 through January 15 as specified in rules promulgated by
21 the Department of Wildlife Conservation, it shall be unlawful to
22 take or attempt to take depredating animals, excluding feral swine,
23 without first obtaining a special permit from the local game warden
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1 or other authorized employee of the Department of Wildlife
2 Conservation.

3 J. 1. Any person convicted of violating the provisions of this
4 section shall be punished by a fine ~~of~~ not less than Five Hundred
5 Dollars (\$500.00) nor more than One Thousand Five Hundred Dollars
6 (\$1,500.00), or by imprisonment in the county jail not to exceed
7 sixty (60) days, or by both such fine and imprisonment. Any person
8 convicted of violating the provisions of this section shall have the
9 permit issued pursuant to this section revoked. No new permit shall
10 be issued for a period of six (6) months from and after the date on
11 which the revocation order becomes effective.

12 2. In addition to the criminal penalties specified by this
13 section, the Oklahoma Department of Agriculture, Food, and Forestry
14 may:

15 a. assess an administrative penalty ~~of~~ not more than Ten
16 Thousand Dollars (\$10,000.00) per day of
17 noncompliance, or

18 b. bring an action for injunctive relief granted by a
19 district court.

20 3. A district court may grant injunctive relief to prevent a
21 violation of, or to compel compliance with, any of the provisions of
22 this section or any rule promulgated pursuant to this section, or
23 order, license, or permit issued pursuant to this section.

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1 4. Nothing in this section shall preclude the Oklahoma
2 Department of Agriculture, Food, and Forestry from seeking penalties
3 in district court in the maximum amount allowed by law.

4 5. Any person assessed an administrative penalty may be
5 required to pay, in addition to the penalty amount and interest,
6 attorney fees and costs associated with the collection of the
7 penalties.

8 6. The Oklahoma Department of Agriculture, Food, and Forestry
9 or the district attorney of the appropriate district of Oklahoma may
10 bring an action in district court for the criminal prosecution of a
11 violation by any person of a provision of this section or any rule
12 promulgated pursuant to this section, or order, license, or permit
13 issued pursuant to this section. The assessment of penalties in an
14 administrative enforcement proceeding shall not prevent the
15 subsequent assessment by a court of the maximum criminal penalties
16 for violations of this section.

17 K. Any person convicted of violating the provisions of Section
18 4-106 of this title shall have the permit issued pursuant to this
19 section revoked. No new permit shall be issued for a period of six
20 (6) months from and after the date on which the revocation order
21 becomes effective.

22 L. As used in this section:

23 1. "Depredating animal" means **feral hogs**, coyotes, and
24 crossbreeds between coyotes and dogs;

1 2. "Management by the use of aircraft" means to manage
2 depredating animals by counting, photographing, relocating,
3 capturing, or hunting with any firearm by the use of aircraft; and

4 3. "Aircraft" means manned fixed-wing and non-fixed-wing
5 aircraft registered with the Federal Aviation Administration (FAA).

6 SECTION 4. AMENDATORY 29 O.S. 2021, Section 4-135, as
7 last amended by Section 1, Chapter 198, O.S.L. 2023 (29 O.S. Supp.
8 2025, Section 4-135), is amended to read as follows:

9 Section 4-135. A. The Department of Wildlife Conservation is
10 authorized to issue permits to landowners, agricultural lessees, or
11 their designated agents with written permission of the landowner or
12 agricultural lessee and to any entity of state, county, or local
13 government to control nuisance or damage by any species of wildlife
14 including, but not limited to, beaver, coyote, deer, bobcat,
15 raccoon, and crow under rules promulgated by the Oklahoma Wildlife
16 Conservation Commission. The permits may be issued without
17 limitation by statewide season regulations, bag limits, or methods
18 of taking. A permitted landowner, agricultural lessee, or a
19 designated agent with written permission of the landowner or
20 agricultural lessee may, with a valid permit issued pursuant to this
21 section, control the wildlife specified in this subsection ~~and feral~~
22 ~~swine~~ at night to protect marketable agricultural crops, livestock,
23 or processed feed, seed, or other materials used in the production
24 of an agricultural commodity.

1 B. Except as otherwise specified in this ~~subsection~~ section,
2 the permit to hunt at night shall be valid for a period of up to one
3 (1) year from the date the permit was issued.

4 C. Notwithstanding the provisions of Section 5-203.1 of this
5 title, a landowner, agricultural lessee, or designated agent with
6 written permission of the landowner and with a valid permit may use
7 a headlight carried on the person while hunting at night. Nothing
8 in this section shall authorize the use of a headlight mounted on a
9 vehicle or the use of a headlight from a public roadway.

10 D. Any person who has been convicted of, or pled guilty to, a
11 violation of Section 5-203.1 or Section 5-411 of this title within
12 the previous three (3) years shall not be eligible to receive a
13 permit pursuant to this section. The permit can be issued by the
14 local game warden in the county for which the permit is to be used
15 or by the Law Enforcement Division of the Department of Wildlife
16 Conservation.

17 ~~E. It shall be lawful for any private landowner or designated~~
18 ~~employee of the landowner or lessee to have a chamber-loaded firearm~~
19 ~~on property owned by the landowner, and to use the firearm for the~~
20 ~~purpose of controlling nuisance or damage by any wildlife or feral~~
21 ~~swine. Nothing in this section shall authorize any convicted felon~~
22 ~~to carry a firearm.~~

1 SECTION 5. AMENDATORY Section 3, Chapter 171, O.S.L.
2 2022 (29 O.S. Supp. 2025, Section 4-135.2), is amended to read as
3 follows:

4 Section 4-135.2. A. Except during the regular deer gun ~~seasons~~
5 season, a landowner, agricultural lessee, or ~~their~~ his or her
6 designated agent with written permission from the landowner or
7 agricultural lessee may control nuisance or damage by coyotes ~~or~~
8 ~~feral swine~~ without a permit as provided for in Section 4-135 of
9 ~~Title 29 of the Oklahoma Statutes~~ this title during the day or
10 night, and without limitation by statewide season regulations or bag
11 limits, and with the use of any legal means of take, to protect
12 marketable agricultural crops, livestock, or processed feed, seed,
13 or other materials used in the production of an agricultural
14 commodity. Landowners or agricultural lessees performing nuisance
15 control activities shall be required to have a current agricultural
16 exemption permit issued by the Oklahoma Tax Commission.

17 B. Except during the regular deer gun season, a landowner,
18 agricultural lessee, or his or her designated agent with written
19 permission from the landowner or agricultural lessee may control
20 nuisance or damage by feral swine without a permit as provided for
21 in Section 4-135 of this title during the day or night. During the
22 regular deer gun season, any person, excluding landowners and
23 agricultural lessees on property owned or leased by them, in the
24 field during legal daylight shooting hours in possession of a

1 firearm that is legal to harvest a deer shall be in possession of a
2 hunting license and deer gun license unless otherwise exempt.

3 C. Notwithstanding the provisions of Section 5-203.1 of ~~Title~~
4 ~~29 of the Oklahoma Statutes~~ this title, a landowner, agricultural
5 lessee, or designated agent of the landowner or lessee may use a
6 headlight, thermal, or light enhancement device carried on the
7 person, a vehicle with or without a mounted spotlight, or night
8 vision equipment while controlling nuisance coyotes **and feral swine**
9 at night. Nothing in this subsection shall authorize the discharge
10 of a firearm, the use of a headlight, thermal or night vision
11 equipment, or a spotlight from a public roadway. Upon final
12 conviction of violation of this section, any hunting or fishing
13 license issued to a person by the Department of Wildlife
14 Conservation shall be automatically revoked. The revocation shall
15 be for a period not less than one (1) year.

16 ~~C.~~ D. Any person who has been convicted of, or pleads guilty
17 to, a violation of Section 5-203.1 ~~of Title 29 of the Oklahoma~~
18 ~~Statutes or Section 5-411 of Title 29 of the Oklahoma Statutes~~ of
19 this title within a previous three-year period shall not control
20 nuisance or damage by coyotes **or feral swine** at night.

21 SECTION 6. REPEALER 2 O.S. 2021, Section 6-605, is
22 hereby repealed.
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SECTION 7. This act shall become effective November 1, 2026.

COMMITTEE REPORT BY: COMMITTEE ON AGRICULTURE AND WILDLIFE
February 9, 2026 - DO PASS AS AMENDED